



REQUEST FOR PROPOSALS

Workforce Innovation and Opportunity Act Title I
Career Services for Adults and Dislocated Workers
and Jobs First Employment Services Case
Management

July 1, 2025 — June 30, 2026

Issue Date: November 4, 2024

Deadline for Submission: January 17, 2025

Northwest Regional Workforce Investment Board

www.nrwib.org

INTRODUCTION

The Northwest Regional Workforce Investment Board, Inc. (NRWIB) is the administrative entity that oversees and administers Workforce Innovation and Opportunity Act (WIOA) and CT-DOL funded programs in the Northwest Region Workforce Development Area (WDA). The NRWIB together with other workforce partners in our region promotes effective delivery of workforce development services throughout the Region.

The NRWIB workforce development area consists of forty-one municipalities. They are: Barkhamsted, Bethlehem, Bethel, Bridgewater, Brookfield, Canaan, Cheshire, Colebrook, Cornwall, Danbury, Goshen, Hartland, Harwinton, Kent, Litchfield, Middlebury, Morris, Newtown, New Fairfield, New Milford, New Hartford, Naugatuck, Norfolk, North Canaan, Prospect, Redding, Ridgefield, Roxbury, Salisbury, Sharon, Sherman, Southbury, Thomaston, Torrington, Warren, Washington, Waterbury, Watertown, Winchester, Winsted, Wolcott, and Woodbury.

This is a Request for Proposals (RFP) for the management and delivery of the WIOA Title I career services for adults and dislocated workers in the one-stop centers throughout the region. The proposer selected will be responsible for 1) the delivery of career services to the general population in concert with Connecticut Department of Labor (CT DOL) staff funded through the Wagner Peyser Act and 2) to WIOA eligible adults and dislocated workers, and 3) the delivery of Jobs First Employment Services (JFES) to welfare recipients required to meet work activity requirements under the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (PRWOR). In addition, the NRWIB receives discretionary grants from time to time that require employment services for special populations. Funds may be added to the selected proposer's contract so that the selected proposer may provide employment services to individuals targeted by those grants.

The NRWIB is seeking a single proposer to provide these services.

To assist proposers in responding to this RFP, demographics and job and labor market information for the NRWIB workforce area are available for review at: www.nrwib.org, click on NRWIB WIOA Local Plan 2024-2028.

This RFP is electronic and can be downloaded from the NRWIB website www.nrwib.org. Paper copies will not be available.

This is not an open RFP, therefore, responses must be received by 4:00 p.m. on January 17, 2025, after which time NRWIB will not accept additional proposals. NRWIB will maintain all proposals on file for three (3) years in the event negotiations with the selected proposer cannot be finalized, additional funds become available through the WIOA, or the selected proposer is not able to perform contracted activities. Proposer(s) who do not submit proposal responses will not be considered for funding after the proposal deadline for submission. Proposers must score a minimum of 70% to be considered for funding.

A Proposers' Conference to review the RFP and process is scheduled for November 13, 2024 at 12:00 p.m. The meeting will be fully virtual. Please contact Jeff Lynes at Jeffrey.lynes@nrwib.org for an invitation.

Questions regarding this RFP should be submitted in writing to the link provided on the NRWIB website. Questions will be accepted until December 13, 2024 answers will be posted on the website. Phone call inquiries will not be accepted. Answers to questions asked at the Proposers' Conference will be made public on the NRWIB website, www.nrwib.org.

Notification of Intent to Apply

Please submit the attached Notification of Intent to Apply by December 20, 2024 found in *Attachment 1*. The form may be faxed or emailed to Jeffrey Lynes at 203-573-8951 or Jeffrey.lynes@nrwib.org. ***This is an RFP requirement failure to notify the NRWIB through the Notice of Intent to Apply will disqualify your organization.***

We thank you in advance for your time and effort and look forward to reading and reviewing your proposal(s) due by 4:00 pm on January 17, 2025.

AI Summary and Authorization Pilot

To streamline the proposal review process, NRWIB will employ artificial intelligence (AI) technology to create summaries of each proposal submission. These summaries will assist the evaluation committee in its review and scoring. Each proposer must review the AI-generated summary for accuracy and sign a confirmation form authorizing NRWIB to pilot the use of the summary as part of the evaluation. Please see Appendix A: AI-Generated Summary Authorization Form.

SECTION I: DESCRIPTION OF REQUESTED CAREER SERVICES

WIOA requires that one stop centers be the front door for accessing career services under WIOA or from related federal and local workforce funding streams represented by other one-stop partners co-located or in the region. Services are provided to job seekers needing training and/or job placement as well as to employers looking for employees, employee training, information about workforce services and labor market information. There is one

~~full-service comprehensive one-stop centers in the NRWIB workforce area and 2 affiliate/satellite one-stop centers.~~

~~The NRWIB is interested in fostering an integrated approach to assisting individuals and employers while also avoiding duplication of services among the one-stop legislative partners. This will result in better more effective services to the client and an expanded capacity within the community to increase the number of individuals being served.~~

~~The NRWIB is looking for one provider to staff and provide WIOA Title I career services in the full-service comprehensive one-stop center, and to staff and provide services or access to WIOA and one-stop partner services in the affiliate or satellite centers as described in WIOA and the regulations promulgated there under.~~

~~Job-seekers enter the one-stop now also referred to as America's Job Centers (AJC) through the resource room. The selected proposer will be expected to coordinate with CT DOL to maintain and provide labor exchange services through the resource room, before being referred to one-stop partner or WIOA individualized services for those meeting WIOA eligibility requirements. CT DOL maintains CT HIREs, the job bank, provides job referral services and solicits employers to list jobs. All direct placement, replacement and assistance in placing individuals following completion of training is coordinated with CT DOL staff assigned to the one-stop. Proposer's staff will be expected to assist with these functions and augments capacity already available in the one-stop centers.~~

~~Proposer will be responsible for providing information in formats that are usable by and understandable to one-stop center customers.~~

~~Individuals with one or more of the WIOA barriers which interfere with their ability to be employed and self-sufficient or who are dislocated workers or are WIOA eligible out of school youth receive individualized services and may already be utilizing a variety of social and human services in addition to those available through WIOA. Case worker / counselors (Career Navigators) are responsible for coordinating the services needed with those already being delivered.~~

~~The proposer selected will be responsible for case management and counseling during participation in WIOA and JFES-funded activities and through the 12-month follow-up/retention period in unsubsidized employment.~~

~~While there is no mandated order in the delivery of services, services available under WIOA Title I should be appropriate to meet the needs of the job-seeker including JFES recipients and employers.~~

AI-Generated Summary Process-Pilot

~~As part of the proposal submission process, proposers are asked to authorize the NRWIB's pilot use of AI-generated summaries of their submissions. NRWIB will provide each proposer with the AI summary to review for accuracy. Proposers must sign off on the summary's accuracy, allowing NRWIB to pilot what is intended to be a more efficient and thorough evaluation process.~~

Required Career Services: WIOA and JFES

Listed below are the career services the NRWIB requires be delivered by the selected proposer through the AJC One-Stop Comprehensive and Affiliate/Satellite Centers. Many of the services are informational or self-help or are available through technology.

General information through orientations to services available through the one-stop system for the general public
An orientation on the requirements for participation in WIOA adult, dislocated worker and youth programs
A JFES orientation which provides information requirements of the JFES programs, incorporating the importance and benefit of gainful employment and explaining job search limitations and work activity requirements.
General labor exchange services to the universal population and employers in coordination with the Connecticut Department of Labor (CT DOL) as well as
The provision of local, regional and national labor market information to job seekers and employers including job vacancy listings
The provision of employment statistics for the NRWIB Labor Market
The provision of the occupations in demand lists to job seekers, (these are provided by the state)
Information relating to local occupations in demand and the earnings, skill requirements, and opportunities for advancement for such occupations
Information and assistance filing unemployment compensation claims
Outreach, intake, including worker profiling, and the coordination of outreach with the one-stop partners, recruitment, and determination of WIOA eligibility of adults and dislocated workers
Referral of individuals to other one-stop partners as appropriate
Referral to English language acquisition and integrated education and training programs
Initial assessment of skill levels, including literacy, numeracy, and English language proficiency, aptitudes, abilities including skills gaps, and supportive service needs
To make performance and cost information available as it applies to training providers including youth providers, adult education providers, post-secondary career and technical education and vocational education providers available in the community. (Information will be provided by the NRWIB)
Referral of individuals for information regarding the availability of financial aid for education not provided by WIOA
“Work First” services to JFES clients, including but not limited to work registration, career counseling, four weeks of job search, assessment, screening, placement into a work activity, job club, job development, referral to educational activities, job placement and job re-placement.
Job Club /job search activities for Wagner Peyser and WIOA customers in coordination with CT DOL.
Job Development, placement and replacement into unsubsidized employment in coordination with CT DOL for the universal population, WIOA and JFES participants
Access to and the provision of computer based technologies related to workforce activities such as financial literacy, digital literacy and basic skills remediation
Coordination and referral to short-term prevocational services, including development of learning skills, communication skills, interviewing skills, punctuality, personal maintenance skills, and professional conduct, to prepare individuals for unsubsidized employment or training (Provided by CT DOL subject to funding)

Services to assist WIOA adults, dislocated workers and youth to obtain or retain employment, that may include as appropriate, assessments of individual skill levels and support service needs, interviews and evaluations to identify employment barriers and employment goals, development of an individual employment plan, identifying appropriate employment goals, and the services needed to achieve the employment goals, providing information on eligible training providers and career pathways to attain career objectives
An economic analysis to develop an employment goal targeted toward attainment of self-sufficiency or a livable wage
Development of JFES and WIOA client individual service strategies
Individualized counseling which include elements of employability life skills, job and career counseling as appropriate to the client.
Case management during program participation which include flexible work hours for counselors to suit a working clientele and allow for evening and weekend accessibility between the client and their case manager.
Referral of clients needing assistance beyond the case manager's expertise to other one-stop partners and agencies providing assistance such as but not limited to mental health, substance abuse or domestic violence.
Referrals of eligible and enrolled WIOA participants to occupational skills training and award of an Individual Training Account voucher for training with an eligible training provider
Development of internships and work experiences that are linked to careers for adults, dislocated workers and youth
Referrals of WIOA participants to work based training options such as On the Job and Customized training
Data entry into the state's data base for WIOA and JFES participants to record all services provided.

Compiled AASB Standard

AASB 12 Post-services employment follow-up case management, counseling, advocacy and replacement into unsubsidized employment for WIOA and JFES participants throughout the 12-month retention period

Services to employers, including but not limited to assistance with employee recruitment, knowledge of employer incentives, and assistance with employer recruitment.

Disclosure of Interests in Other Entities

SECTION II: DESCRIPTION OF REQUESTED CAREER SERVICES

JFES (Welfare) Clients

~~Welfare applicants must, with some few exceptions dictated by the law, look for work upon application for TANF benefits. Job search activities must be conducted after applicants are approved for cash assistance. During the initial 4—6 weeks JFES clients participate in job search and must be assessed. If the individual is able to secure a job during job search, they are to be referred for transitional services.~~

~~WIOA Dislocated Workers~~

~~Dislocated workers means an individual whom fits one of the 10 categories of dislocated worker described in WIOA section 3 paragraph 15.~~

~~WIOA Adults~~

~~These are individuals who are 18 or older and who have one of the barriers listed in WIOA section 3 paragraph 24, or who is determined to be low income based on the 2016 Federal Poverty Levels(FPL's) and the Lower Living Standard Income Levels (LLSIL's) under CT DOL AP16-05.~~

~~WIOA Youth—Youth Providers will be secured via a separate RFP~~

~~These are individuals who are out of school and in school and meet the eligibility criteria as described in WIOA 129 (a)(1)(B)~~

SECTION III: DESCRIPTION OF REQUESTED CAREER SERVICES

~~It is expected that approximately 100 WIOA eligible adults, 125 dislocated workers will be referred to training and/or OJT, Work-Based Learning Experience. Allocations are dependent on federal allocations, dollars will be available for ITA's, On the Job Training (OJT), adult work experience, customized training services and such other services as are considered training under WIOA section 134. Youth program vendors (both in-school and out-of-school) will be competitively procured and eligible youth will be referred by the Career Services provider.~~

~~These funds will not be a part of proposer's budget, NRWIB will pay the training providers. The contract entered into will hold the proposer liable for funds obligated in excess of the amount available for this activity. Recording/reporting the obligation of funds is considered a component of timely data entry.~~

~~NRWIB maintains the Eligible Training Provider List (ETPL) and participants may be referred to any course of training on the ETPL. Proposer is expected to hire staff to market and develop OJT, Customized Training and Work Experience opportunities.~~

SECTION IV: DESCRIPTION OF REQUESTED CAREER SERVICES

~~Support services may be made available to eligible WIOA individuals who have been enrolled in a WIOA funded activity to the extent they are not available from other sources within the community. It is anticipated that economically disadvantaged individuals and/or dislocated workers may need transportation services and possibly childcare while in job search or when participating in other WIOA funded activities. Proposer will be responsible for providing access to support services in accordance with the NRWIB support service policies and will be assigned a budget amount for the provision of support services.~~

Individuals needing additional services or services not offered by the NRWIB must be referred to other agencies in the community offering needed support services.

SECTION V: DESCRIPTION OF REQUESTED CAREER SERVICES

Proposer will be expected to provide business services which includes:

- Outreach to and recruiting businesses that may benefit from the services of the One Stop system;
- Maintaining a database of business customers who participate in job fairs and other employer services;
- Coordinating job fairs and hiring events;
- Outreach and promoting on the job training contracts, as appropriate, for job-seeker and employer customers;
- Appropriate recruitment referrals from WIOA and JFES to fill job openings identified within sector or performance-based business services programs;
- Develop and maintain a system for sharing job postings among staff

SECTION VI: ONE STOP LOCATIONS

The NRWIB AJC one-stop comprehensive center is located at 249 Thomaston Avenue, Waterbury, CT 06702. The NRWIB satellite AJC one-stop centers are located at 62 Commercial Boulevard, Torrington, CT and 185 Main Street, Danbury, CT respectively.

The leases for the centers are held by the NRWIB.

SECTION VII: FUNDING

Approximately \$2,350,000.00 is available for these case management services. This amount includes salaries and fringes for staff proposed but does not include facilities rental which shall be paid for by the NRWIB.

Approximately \$ 1,600,000 is available to serve WIOA adults and dislocated workers.

Approximately \$ 750,000 is available to serve JFES recipients

The NRWIB reserves the right to adjust these amounts when determining the winning proposals as well as during contract negotiations.

SECTION VIII: CONTRACT PERIOD AND CONTRACT PERFORMANCE

Providers who do not substantially meet the US DOL performance standards applicable to the various funding streams as described in the contract document will not be renewed.

This compiled Standard applies to annual periods beginning on or after 1 July 2021. Earlier application is permitted for annual periods beginning on or after 1 January 2017 but before 1 July 2021. It incorporates relevant amendments made up to and including 6 March 2020.

Prepared on 21 July 2021 by the staff of the Australian Accounting Standards Board.

Compilation no. 3

Compilation date: 30 June 2021



Australian Government

**Australian Accounting
Standards Board**

Obtaining copies of Accounting Standards

Compiled versions of Standards, original Standards and amending Standards (see Compilation Details) are available on the AASB website: www.aasb.gov.au.

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AVAILABLE ON THE AASB WEBSITE

Basis for Conclusions on IFRS 12

Australian Accounting Standard AASB 12 *Disclosure of Interests in Other Entities* (as amended) is set out in paragraphs 1 – Aus31.2 and Appendices A – C and E – F. All the paragraphs have equal authority. Paragraphs in **bold type** state the main principles. Terms defined in Appendix A are in *italics* the first time they appear in the Standard. AASB 12 is to be read in the context of other Australian Accounting Standards, including AASB 1048 *Interpretation of Standards*, which identifies the Australian Accounting Interpretations, and AASB 1057 *Application of Australian Accounting Standards*. In the absence of explicit guidance, AASB 108 *Accounting Policies, Changes in Accounting Estimates and Errors* provides a basis for selecting and applying accounting policies.

Comparison with IFRS 12

AASB 12 *Disclosure of Interests in Other Entities* as amended incorporates IFRS 12 *Disclosure of Interests in Other Entities* as issued and amended by the International Accounting Standards Board (IASB). Australian-specific paragraphs (which are not included in IFRS 12) are identified with the prefix “Aus”. Paragraphs that apply only to not-for-profit entities begin by identifying their limited applicability.

Tier 1

For-profit entities complying with AASB 12 also comply with IFRS 12.

Not-for-profit entities’ compliance with IFRS 12 will depend on whether any “Aus” paragraphs that specifically apply to not-for-profit entities provide additional guidance or contain applicable requirements that are inconsistent with IFRS 12.

AASB 1053 *Application of Tiers of Australian Accounting Standards* explains the two tiers of reporting requirements.

Accounting Standard AASB 12

The Australian Accounting Standards Board made Accounting Standard AASB 12 *Disclosure of Interests in Other Entities* under section 334 of the *Corporations Act 2001* on 7 August 2015.

This compiled version of AASB 12 applies to annual periods beginning on or after 1 July 2021. It incorporates relevant amendments contained in other AASB Standards made by the AASB up to and including 6 March 2020 (see *Compilation Details*).

Accounting Standard AASB 12 **Disclosure of Interests in Other Entities**

Objective

1 The objective of this Standard is to require an entity to disclose information that enables users of its financial statements to evaluate:

(a) the nature of, and risks associated with, its interests in other entities; and

(b) the effects of those interests on its financial position, financial performance and cash flows.

AusCF1 AusCF entities are:

(a) not-for-profit entities; and

(b) for-profit entities that are not applying the *Conceptual Framework for Financial Reporting* (as identified in AASB 1048 *Interpretation of Standards*).

For AusCF entities, the term ‘reporting entity’ is defined in AASB 1057 *Application of Australian Accounting Standards* and Statement of Accounting Concepts SAC 1 *Definition of the Reporting Entity* also applies. For-profit entities applying the *Conceptual Framework for Financial Reporting* are set out in paragraph Aus1.1 of the *Conceptual Framework*.

Meeting the objective

2 To meet the objective in paragraph 1, an entity shall disclose:

(a) the significant judgements and assumptions it has made in determining:

(i) the nature of its interest in another entity or arrangement;

(ii) the type of joint arrangement in which it has an interest (paragraphs 7–9);

(iii) that it meets the definition of an investment entity, if applicable (paragraph 9A); and

(b) information about its interests in:

(i) subsidiaries (paragraphs 10–19);

(ii) joint arrangements and associates (paragraphs 20–23); and

(iii) structured entities that are not controlled by the entity (unconsolidated structured entities) (paragraphs 24–31).

3 If the disclosures required by this Standard, together with disclosures required by other Standards, do not meet the objective in paragraph 1, an entity shall disclose whatever additional information is necessary to meet that objective.

4 An entity shall consider the level of detail necessary to satisfy the disclosure objective and how much emphasis to place on each of the requirements in this Standard. It shall aggregate or disaggregate disclosures so that useful information is not obscured by either the inclusion of a large amount of insignificant detail or the aggregation of items that have different characteristics (see paragraphs B2–B6).

Scope

- 5 This Standard shall be applied by an entity that has an interest in any of the following:
- (a) subsidiaries
 - (b) joint arrangements (ie joint operations or joint ventures)
 - (c) associates
 - (d) unconsolidated structured entities.
- 5A Except as described in paragraph B17, the requirements in this Standard apply to an entity's interests listed in paragraph 5 that are classified (or included in a disposal group that is classified) as held for sale or discontinued operations in accordance with AASB 5 *Non-current Assets Held for Sale and Discontinued Operations*.
- 6 This Standard does not apply to:
- (a) post-employment benefit plans or other long-term employee benefit plans to which AASB 119 *Employee Benefits* applies.
 - (b) an entity's separate financial statements to which AASB 127 *Separate Financial Statements* applies. However:
 - (i) if an entity has interests in unconsolidated structured entities and prepares separate financial statements as its only financial statements, it shall apply the requirements in paragraphs 24–31 when preparing those separate financial statements.
 - (ii) an investment entity that prepares financial statements in which all of its subsidiaries are measured at fair value through profit or loss in accordance with paragraph 31 of AASB 10 shall present the disclosures relating to investment entities required by this Standard.
 - (c) an interest held by an entity that participates in, but does not have joint control of, a joint arrangement unless that interest results in significant influence over the arrangement or is an interest in a structured entity.
 - (d) an interest in another entity that is accounted for in accordance with AASB 9 *Financial Instruments*. However, an entity shall apply this Standard:
 - (i) when that interest is an interest in an associate or a joint venture that, in accordance with AASB 128 *Investments in Associates and Joint Ventures*, is measured at fair value through profit or loss; or
 - (ii) when that interest is an interest in an unconsolidated structured entity.

Significant judgements and assumptions

- 7 An entity shall disclose information about significant judgements and assumptions it has made (and changes to those judgements and assumptions) in determining:
- (a) that it has control of another entity, ie an investee as described in paragraphs 5 and 6 of AASB 10 *Consolidated Financial Statements*;
 - (b) that it has joint control of an arrangement or significant influence over another entity; and
 - (c) the type of joint arrangement (ie joint operation or joint venture) when the arrangement has been structured through a separate vehicle.
- 8 The significant judgements and assumptions disclosed in accordance with paragraph 7 include those made by the entity when changes in facts and circumstances are such that the conclusion about whether it has control, joint control or significant influence changes during the reporting period.
- 9 To comply with paragraph 7, an entity shall disclose, for example, significant judgements and assumptions made in determining that:
- (a) it does not control another entity even though it holds more than half of the voting rights of the other entity.
 - (b) it controls another entity even though it holds less than half of the voting rights of the other entity.
 - (c) it is an agent or a principal (see paragraphs B58–B72 of AASB 10).

- (d) it does not have significant influence even though it holds 20 per cent or more of the voting rights of another entity.
- (e) it has significant influence even though it holds less than 20 per cent of the voting rights of another entity.

Investment entity status

- 9A** When a parent determines that it is an investment entity in accordance with paragraph 27 of AASB 10, the investment entity shall disclose information about significant judgements and assumptions it has made in determining that it is an investment entity. If the investment entity does not have one or more of the typical characteristics of an investment entity (see paragraph 28 of AASB 10), it shall disclose its reasons for concluding that it is nevertheless an investment entity.
- 9B** When an entity becomes, or ceases to be, an investment entity, it shall disclose the change of investment entity status and the reasons for the change. In addition, an entity that becomes an investment entity shall disclose the effect of the change of status on the financial statements for the period presented, including:
- (a) the total fair value, as of the date of change of status, of the subsidiaries that cease to be consolidated;
 - (b) the total gain or loss, if any, calculated in accordance with paragraph B101 of AASB 10; and
 - (c) the line item(s) in profit or loss in which the gain or loss is recognised (if not presented separately).

Interests in subsidiaries

- 10** An entity shall disclose information that enables users of its consolidated financial statements
- (a) to understand:
 - (i) the composition of the group; and
 - (ii) the interest that non-controlling interests have in the group's activities and cash flows (paragraph 12); and
 - (b) to evaluate:
 - (i) the nature and extent of significant restrictions on its ability to access or use assets, and settle liabilities, of the group (paragraph 13);
 - (ii) the nature of, and changes in, the risks associated with its interests in consolidated structured entities (paragraphs 14–17);
 - (iii) the consequences of changes in its ownership interest in a subsidiary that do not result in a loss of control (paragraph 18); and
 - (iv) the consequences of losing control of a subsidiary during the reporting period (paragraph 19).
- 11** When the financial statements of a subsidiary used in the preparation of consolidated financial statements are as of a date or for a period that is different from that of the consolidated financial statements (see paragraphs B92 and B93 of AASB 10), an entity shall disclose:
- (a) the date of the end of the reporting period of the financial statements of that subsidiary; and
 - (b) the reason for using a different date or period.

The interest that non-controlling interests have in the group's activities and cash flows

- 12** An entity shall disclose for each of its subsidiaries that have non-controlling interests that are material to the reporting entity:
- (a) the name of the subsidiary.
 - (b) the principal place of business (and country of incorporation if different from the principal place of business) of the subsidiary.
 - (c) the proportion of ownership interests held by non-controlling interests.

- (d) the proportion of voting rights held by non-controlling interests, if different from the proportion of ownership interests held.
- (e) the profit or loss allocated to non-controlling interests of the subsidiary during the reporting period.
- (f) accumulated non-controlling interests of the subsidiary at the end of the reporting period.
- (g) summarised financial information about the subsidiary (see paragraph B10).

The nature and extent of significant restrictions

13 An entity shall disclose:

- (a) significant restrictions (eg statutory, contractual and regulatory restrictions) on its ability to access or use the assets and settle the liabilities of the group, such as:
 - (i) those that restrict the ability of a parent or its subsidiaries to transfer cash or other assets to (or from) other entities within the group.
 - (ii) guarantees or other requirements that may restrict dividends and other capital distributions being paid, or loans and advances being made or repaid, to (or from) other entities within the group.
- (b) the nature and extent to which protective rights of non-controlling interests can significantly restrict the entity's ability to access or use the assets and settle the liabilities of the group (such as when a parent is obliged to settle liabilities of a subsidiary before settling its own liabilities, or approval of non-controlling interests is required either to access the assets or to settle the liabilities of a subsidiary).
- (c) the carrying amounts in the consolidated financial statements of the assets and liabilities to which those restrictions apply.

Nature of the risks associated with an entity's interests in consolidated structured entities

- 14 An entity shall disclose the terms of any contractual arrangements that could require the parent or its subsidiaries to provide financial support to a consolidated structured entity, including events or circumstances that could expose the reporting entity to a loss (eg liquidity arrangements or credit rating triggers associated with obligations to purchase assets of the structured entity or provide financial support).
- 15 If during the reporting period a parent or any of its subsidiaries has, without having a contractual obligation to do so, provided financial or other support to a consolidated structured entity (eg purchasing assets of or instruments issued by the structured entity), the entity shall disclose:
- (a) the type and amount of support provided, including situations in which the parent or its subsidiaries assisted the structured entity in obtaining financial support; and
 - (b) the reasons for providing the support.
- 16 If during the reporting period a parent or any of its subsidiaries has, without having a contractual obligation to do so, provided financial or other support to a previously unconsolidated structured entity and that provision of support resulted in the entity controlling the structured entity, the entity shall disclose an explanation of the relevant factors in reaching that decision.
- 17 An entity shall disclose any current intentions to provide financial or other support to a consolidated structured entity, including intentions to assist the structured entity in obtaining financial support.

Consequences of changes in a parent's ownership interest in a subsidiary that do not result in a loss of control

- 18 An entity shall present a schedule that shows the effects on the equity attributable to owners of the parent of any changes in its ownership interest in a subsidiary that do not result in a loss of control.

Consequences of losing control of a subsidiary during the reporting period

- 19 An entity shall disclose the gain or loss, if any, calculated in accordance with paragraph 25 of AASB 10, and:

- (a) the portion of that gain or loss attributable to measuring any investment retained in the former subsidiary at its fair value at the date when control is lost; and
- (b) the line item(s) in profit or loss in which the gain or loss is recognised (if not presented separately).

Interests in unconsolidated subsidiaries (investment entities)

- 19A An investment entity that, in accordance with AASB 10, is required to apply the exception to consolidation and instead account for its investment in a subsidiary at fair value through profit or loss shall disclose that fact.
- 19B For each unconsolidated subsidiary, an investment entity shall disclose:
- (a) the subsidiary's name;
 - (b) the principal place of business (and country of incorporation if different from the principal place of business) of the subsidiary; and
 - (c) the proportion of ownership interest held by the investment entity and, if different, the proportion of voting rights held.
- 19C If an investment entity is the parent of another investment entity, the parent shall also provide the disclosures in 19B(a)–(c) for investments that are controlled by its investment entity subsidiary. The disclosure may be provided by including, in the financial statements of the parent, the financial statements of the subsidiary (or subsidiaries) that contain the above information.
- 19D An investment entity shall disclose:
- (a) the nature and extent of any significant restrictions (eg resulting from borrowing arrangements, regulatory requirements or contractual arrangements) on the ability of an unconsolidated subsidiary to transfer funds to the investment entity in the form of cash dividends or to repay loans or advances made to the unconsolidated subsidiary by the investment entity; and
 - (b) any current commitments or intentions to provide financial or other support to an unconsolidated subsidiary, including commitments or intentions to assist the subsidiary in obtaining financial support.
- 19E If, during the reporting period, an investment entity or any of its subsidiaries has, without having a contractual obligation to do so, provided financial or other support to an unconsolidated subsidiary (eg purchasing assets of, or instruments issued by, the subsidiary or assisting the subsidiary in obtaining financial support), the entity shall disclose:
- (a) the type and amount of support provided to each unconsolidated subsidiary; and
 - (b) the reasons for providing the support.
- 19F An investment entity shall disclose the terms of any contractual arrangements that could require the entity or its unconsolidated subsidiaries to provide financial support to an unconsolidated, controlled, structured entity, including events or circumstances that could expose the reporting entity to a loss (eg liquidity arrangements or credit rating triggers associated with obligations to purchase assets of the structured entity or to provide financial support).
- 19G If during the reporting period an investment entity or any of its unconsolidated subsidiaries has, without having a contractual obligation to do so, provided financial or other support to an unconsolidated, structured entity that the investment entity did not control, and if that provision of support resulted in the investment entity controlling the structured entity, the investment entity shall disclose an explanation of the relevant factors in reaching the decision to provide that support.

Interests in joint arrangements and associates

- 20 An entity shall disclose information that enables users of its financial statements to evaluate:
- (a) the nature, extent and financial effects of its interests in joint arrangements and associates, including the nature and effects of its contractual relationship with the other investors with joint control of, or significant influence over, joint arrangements and associates (paragraphs 21 and 22); and
 - (b) the nature of, and changes in, the risks associated with its interests in joint ventures and associates (paragraph 23).

Nature, extent and financial effects of an entity's interests in joint arrangements and associates

21 An entity shall disclose:

- (a) for each joint arrangement and associate that is material to the reporting entity:
 - (i) the name of the joint arrangement or associate.
 - (ii) the nature of the entity's relationship with the joint arrangement or associate (by, for example, describing the nature of the activities of the joint arrangement or associate and whether they are strategic to the entity's activities).
 - (iii) the principal place of business (and country of incorporation, if applicable and different from the principal place of business) of the joint arrangement or associate.
 - (iv) the proportion of ownership interest or participating share held by the entity and, if different, the proportion of voting rights held (if applicable).
- (b) for each joint venture and associate that is material to the reporting entity:
 - (i) whether the investment in the joint venture or associate is measured using the equity method or at fair value.
 - (ii) summarised financial information about the joint venture or associate as specified in paragraphs B12 and B13.
 - (iii) if the joint venture or associate is accounted for using the equity method, the fair value of its investment in the joint venture or associate, if there is a quoted market price for the investment.
- (c) financial information as specified in paragraph B16 about the entity's investments in joint ventures and associates that are not individually material:
 - (i) in aggregate for all individually immaterial joint ventures and, separately,
 - (ii) in aggregate for all individually immaterial associates.

21A An investment entity need not provide the disclosures required by paragraphs 21(b)–21(c).

22 An entity shall also disclose:

- (a) the nature and extent of any significant restrictions (eg resulting from borrowing arrangements, regulatory requirements or contractual arrangements between investors with joint control of or significant influence over a joint venture or an associate) on the ability of joint ventures or associates to transfer funds to the entity in the form of cash dividends, or to repay loans or advances made by the entity.
- (b) when the financial statements of a joint venture or associate used in applying the equity method are as of a date or for a period that is different from that of the entity:
 - (i) the date of the end of the reporting period of the financial statements of that joint venture or associate; and
 - (ii) the reason for using a different date or period.
- (c) the unrecognised share of losses of a joint venture or associate, both for the reporting period and cumulatively, if the entity has stopped recognising its share of losses of the joint venture or associate when applying the equity method.

Risks associated with an entity's interests in joint ventures and associates

23 An entity shall disclose:

- (a) commitments that it has relating to its joint ventures separately from the amount of other commitments as specified in paragraphs B18–B20.
- (b) in accordance with AASB 137 *Provisions, Contingent Liabilities and Contingent Assets*, unless the probability of loss is remote, contingent liabilities incurred relating to its interests in joint ventures or associates (including its share of contingent liabilities incurred jointly with other investors with joint control of, or significant influence over, the joint ventures or associates), separately from the amount of other contingent liabilities.

Interests in unconsolidated structured entities

- 24** An entity shall disclose information that enables users of its financial statements:
- (a) to understand the nature and extent of its interests in unconsolidated structured entities (paragraphs 26–28); and
 - (b) to evaluate the nature of, and changes in, the risks associated with its interests in unconsolidated structured entities (paragraphs 29–31).
- 25** The information required by paragraph 24(b) includes information about an entity’s exposure to risk from involvement that it had with unconsolidated structured entities in previous periods (eg sponsoring the structured entity), even if the entity no longer has any contractual involvement with the structured entity at the reporting date.
- 25A** An investment entity need not provide the disclosures required by paragraph 24 for an unconsolidated structured entity that it controls and for which it presents the disclosures required by paragraphs 19A–19G.

Nature of interests

- 26** An entity shall disclose qualitative and quantitative information about its interests in unconsolidated structured entities, including, but not limited to, the nature, purpose, size and activities of the structured entity and how the structured entity is financed.
- 27** If an entity has sponsored an unconsolidated structured entity for which it does not provide information required by paragraph 29 (eg because it does not have an interest in the entity at the reporting date), the entity shall disclose:
- (a) how it has determined which structured entities it has sponsored;
 - (b) income from those structured entities during the reporting period, including a description of the types of income presented; and
 - (c) the carrying amount (at the time of transfer) of all assets transferred to those structured entities during the reporting period.
- 28** An entity shall present the information in paragraph 27(b) and (c) in tabular format, unless another format is more appropriate, and classify its sponsoring activities into relevant categories (see paragraphs B2–B6).

Nature of risks

- 29** An entity shall disclose in tabular format, unless another format is more appropriate, a summary of:
- (a) the carrying amounts of the assets and liabilities recognised in its financial statements relating to its interests in unconsolidated structured entities.
 - (b) the line items in the statement of financial position in which those assets and liabilities are recognised.
 - (c) the amount that best represents the entity’s maximum exposure to loss from its interests in unconsolidated structured entities, including how the maximum exposure to loss is determined. If an entity cannot quantify its maximum exposure to loss from its interests in unconsolidated structured entities it shall disclose that fact and the reasons.
 - (d) a comparison of the carrying amounts of the assets and liabilities of the entity that relate to its interests in unconsolidated structured entities and the entity’s maximum exposure to loss from those entities.
- 30** If during the reporting period an entity has, without having a contractual obligation to do so, provided financial or other support to an unconsolidated structured entity in which it previously had or currently has an interest (for example, purchasing assets of or instruments issued by the structured entity), the entity shall disclose:
- (a) the type and amount of support provided, including situations in which the entity assisted the structured entity in obtaining financial support; and
 - (b) the reasons for providing the support.
- 31** An entity shall disclose any current intentions to provide financial or other support to an unconsolidated structured entity, including intentions to assist the structured entity in obtaining financial support.

Commencement of the legislative instrument

Aus31.1 [Repealed]

Withdrawal of AASB pronouncements

Aus31.2 This Standard repeals AASB 12 *Disclosure of Interests in Other Entities* issued in August 2011. Despite the repeal, after the time this Standard starts to apply under section 334 of the Corporations Act (either generally or in relation to an individual entity), the repealed Standard continues to apply in relation to any period ending before that time as if the repeal had not occurred.

[Note: When this Standard applies under section 334 of the Corporations Act (either generally or in relation to an individual entity), it supersedes the application of the repealed Standard.]

Appendix A

Defined terms

This appendix is an integral part of the Standard.

THE ADULT PERFORMANCE MEASURES

income from a structured entity

For the purpose of this Standard, income from a **structured entity** includes, but is not limited to, recurring and non-recurring fees, interest, dividends, gains or losses on the remeasurement or derecognition of interests in structured entities and gains or losses from the transfer of assets and liabilities to the structured entity. ~~The % of participants who are in unsubsidized employment during the second quarter after exit from the program~~

~~The % of participants who are in unsubsidized employment during the fourth quarter after exit from the program;~~

~~Median earnings of participants in unsubsidized employment during the second quarter after exit from the program;~~

interest in another entity

For the purpose of this Standard, an interest in another entity refers to contractual and non-contractual involvement that exposes an entity to variability of returns from the performance of the other entity. An interest in another entity can be evidenced by, but is not limited to, the holding of equity or debt instruments as well as other forms of involvement such as the provision of funding, liquidity support, credit enhancement and guarantees. It includes the means by which an entity has control or joint control of, or significant influence over, another entity. An entity does not necessarily have an interest in another entity solely because of a typical customer supplier relationship.

Paragraphs B7–B9 provide further information about interests in other entities.

Paragraphs B55–B57 of AASB 10 explain variability of returns. ~~The % of those participants enrolled in an education or training program (excluding OJT and customized training) who attained a recognized postsecondary credential or a secondary school diploma, or its recognized equivalent, during participation in or within 1 year after exit from the program.~~

structured entity

An entity that has been designed so that voting or similar rights are not the dominant factor in deciding who controls the entity, such as when any voting rights relate to administrative tasks only and the relevant activities are directed by means of contractual arrangements.

Paragraphs B22–B24 provide further information about structured entities. ~~The % of participants who, during a program year, are in an education or training program leading to a postsecondary credential or employment and are achieving documented measurable skill gains~~

~~Effectiveness in serving employers. TBD~~

The following terms are defined in AASB 127, AASB 128, AASB 10 and AASB 11 *Joint Arrangements* and are used in this Standard with the meanings specified in those Standards:

- associate
- consolidated financial statements
- control of an entity
- equity method
- group
- investment entity

- joint arrangement
- joint control
- joint operation
- joint venture
- non-controlling interest
- parent
- protective rights
- relevant activities
- separate financial statements
- separate vehicle
- significant influence
- subsidiary.

Appendix B

Application guidance

This appendix is an integral part of the Standard. It describes the application of paragraphs 1–31 and has the same authority as the other parts of the Standard.

- B1 The examples in this appendix portray hypothetical situations. Although some aspects of the examples may be present in actual fact patterns, all relevant facts and circumstances of a particular fact pattern would need to be evaluated when applying AASB 12.

Aggregation (paragraph 4)

- B2 An entity shall decide, in the light of its circumstances, how much detail it provides to satisfy the information needs of users, how much emphasis it places on different aspects of the requirements and how it aggregates the information. It is necessary to strike a balance between burdening financial statements with excessive detail that may not assist users of financial statements and obscuring information as a result of too much aggregation.
- B3 An entity may aggregate the disclosures required by this Standard for interests in similar entities if aggregation is consistent with the disclosure objective and the requirement in paragraph B4, and does not obscure the information provided. An entity shall disclose how it has aggregated its interests in similar entities.
- B4 An entity shall present information separately for interests in:
- (a) subsidiaries;
 - (b) joint ventures;
 - (c) joint operations;
 - (d) associates; and
 - (e) unconsolidated structured entities.
- B5 In determining whether to aggregate information, an entity shall consider quantitative and qualitative information about the different risk and return characteristics of each entity it is considering for aggregation and the significance of each such entity to the reporting entity. The entity shall present the disclosures in a manner that clearly explains to users of financial statements the nature and extent of its interests in those other entities.
- B6 Examples of aggregation levels within the classes of entities set out in paragraph B4 that might be appropriate are:
- (a) nature of activities (eg a research and development entity, a revolving credit card securitisation entity).
 - (b) industry classification.
 - (c) geography (eg country or region).

Interests in other entities

- B7 An interest in another entity refers to contractual and non-contractual involvement that exposes the reporting entity to variability of returns from the performance of the other entity. Consideration of the purpose and design of the other entity may help the reporting entity when assessing whether it has an interest in that entity and, therefore, whether it is required to provide the disclosures in this Standard. That assessment shall include consideration of the risks that the other entity was designed to create and the risks the other entity was designed to pass on to the reporting entity and other parties.
- B8 A reporting entity is typically exposed to variability of returns from the performance of another entity by holding instruments (such as equity or debt instruments issued by the other entity) or having another involvement that absorbs variability. For example, assume a structured entity holds a loan portfolio. The structured entity obtains a credit default swap from another entity (the reporting entity) to protect itself from the default of interest and principal payments on the loans. The reporting entity has involvement that exposes it to variability of returns from the performance of the structured entity because the credit default swap absorbs variability of returns of the structured entity.

B9 Some instruments are designed to transfer risk from a reporting entity to another entity. Such instruments create variability of returns for the other entity but do not typically expose the reporting entity to variability of returns from the performance of the other entity. For example, assume a structured entity is established to provide investment opportunities for investors who wish to have exposure to entity Z's credit risk (entity Z is unrelated to any party involved in the arrangement). The structured entity obtains funding by issuing to those investors notes that are linked to entity Z's credit risk (credit-linked notes) and uses the proceeds to invest in a portfolio of risk-free financial assets. The structured entity obtains exposure to entity Z's credit risk by entering into a credit default swap (CDS) with a swap counterparty. The CDS passes entity Z's credit risk to the structured entity in return for a fee paid by the swap counterparty. The investors in the structured entity receive a higher return that reflects both the structured entity's return from its asset portfolio and the CDS fee. The swap counterparty does not have involvement with the structured entity that exposes it to variability of returns from the performance of the structured entity because the CDS transfers variability to the structured entity, rather than absorbing variability of returns of the structured entity.

Summarised financial information for subsidiaries, joint ventures and associates (paragraphs 12 and 21)

B10 For each subsidiary that has non-controlling interests that are material to the reporting entity, an entity shall disclose:

- (a) dividends paid to non-controlling interests.
- (b) summarised financial information about the assets, liabilities, profit or loss and cash flows of the subsidiary that enables users to understand the interest that non-controlling interests have in the group's activities and cash flows. That information might include but is not limited to, for example, current assets, non-current assets, current liabilities, non-current liabilities, revenue, profit or loss and total comprehensive income.

B11 The summarised financial information required by paragraph B10(b) shall be the amounts before inter-company eliminations.

B12 For each joint venture and associate that is material to the reporting entity, an entity shall disclose:

- (a) dividends received from the joint venture or associate.
- (b) summarised financial information for the joint venture or associate (see paragraphs B14 and B15) including, but not necessarily limited to:
 - (i) current assets.
 - (ii) non-current assets.
 - (iii) current liabilities.
 - (iv) non-current liabilities.
 - (v) revenue.
 - (vi) profit or loss from continuing operations.
 - (vii) post-tax profit or loss from discontinued operations.
 - (viii) other comprehensive income.
 - (ix) total comprehensive income.

B13 In addition to the summarised financial information required by paragraph B12, an entity shall disclose for each joint venture that is material to the reporting entity the amount of:

- (a) cash and cash equivalents included in paragraph B12(b)(i).
- (b) current financial liabilities (excluding trade and other payables and provisions) included in paragraph B12(b)(iii).
- (c) non-current financial liabilities (excluding trade and other payables and provisions) included in paragraph B12(b)(iv).
- (d) depreciation and amortisation.
- (e) interest income.
- (f) interest expense.
- (g) income tax expense or income.

- B14** The summarised financial information presented in accordance with paragraphs B12 and B13 shall be the amounts included in the Australian-Accounting-Standards financial statements of the joint venture or associate (and not the entity's share of those amounts). If the entity accounts for its interest in the joint venture or associate using the equity method:
- (a) the amounts included in the Australian-Accounting-Standards financial statements of the joint venture or associate shall be adjusted to reflect adjustments made by the entity when using the equity method, such as fair value adjustments made at the time of acquisition and adjustments for differences in accounting policies.
 - (b) the entity shall provide a reconciliation of the summarised financial information presented to the carrying amount of its interest in the joint venture or associate.
- B15** An entity may present the summarised financial information required by paragraphs B12 and B13 on the basis of the joint venture's or associate's financial statements if:
- (a) the entity measures its interest in the joint venture or associate at fair value in accordance with AASB 128; and
 - (b) the joint venture or associate does not prepare Australian-Accounting-Standards financial statements and preparation on that basis would be impracticable or cause undue cost.
- In that case, the entity shall disclose the basis on which the summarised financial information has been prepared.
- B16** An entity shall disclose, in aggregate, the carrying amount of its interests in all individually immaterial joint ventures or associates that are accounted for using the equity method. An entity shall also disclose separately the aggregate amount of its share of those joint ventures' or associates':
- (a) profit or loss from continuing operations.
 - (b) post-tax profit or loss from discontinued operations.
 - (c) other comprehensive income.
 - (d) total comprehensive income.
- An entity provides the disclosures separately for joint ventures and associates.
- B17** When an entity's interest in a subsidiary, a joint venture or an associate (or a portion of its interest in a joint venture or an associate) is classified (or included in a disposal group that is classified) as held for sale in accordance with AASB 5, the entity is not required to disclose summarised financial information for that subsidiary, joint venture or associate in accordance with paragraphs B10–B16.

Commitments for joint ventures (paragraph 23(a))

- B18** An entity shall disclose total commitments it has made but not recognised at the reporting date (including its share of commitments made jointly with other investors with joint control of a joint venture) relating to its interests in joint ventures. Commitments are those that may give rise to a future outflow of cash or other resources.
- B19** Unrecognised commitments that may give rise to a future outflow of cash or other resources include:
- (a) unrecognised commitments to contribute funding or resources as a result of, for example:
 - (i) the constitution or acquisition agreements of a joint venture (that, for example, require an entity to contribute funds over a specific period).
 - (ii) capital-intensive projects undertaken by a joint venture.
 - (iii) unconditional purchase obligations, comprising procurement of equipment, inventory or services that an entity is committed to purchasing from, or on behalf of, a joint venture.
 - (iv) unrecognised commitments to provide loans or other financial support to a joint venture.
 - (v) unrecognised commitments to contribute resources to a joint venture, such as assets or services.
 - (vi) other non-cancellable unrecognised commitments relating to a joint venture.
 - (b) unrecognised commitments to acquire another party's ownership interest (or a portion of that ownership interest) in a joint venture if a particular event occurs or does not occur in the future.
- B20** The requirements and examples in paragraphs B18 and B19 illustrate some of the types of disclosure required by paragraph 18 of AASB 124 *Related Party Disclosures*.

Interests in unconsolidated structured entities (paragraphs 24–31)

Structured entities

- B21 A structured entity is an entity that has been designed so that voting or similar rights are not the dominant factor in deciding who controls the entity, such as when any voting rights relate to administrative tasks only and the relevant activities are directed by means of contractual arrangements.
- B22 A structured entity often has some or all of the following features or attributes:
- (a) restricted activities.
 - (b) a narrow and well-defined objective, such as to effect a tax-efficient lease, carry out research and development activities, provide a source of capital or funding to an entity or provide investment opportunities for investors by passing on risks and rewards associated with the assets of the structured entity to investors.
 - (c) insufficient equity to permit the structured entity to finance its activities without subordinated financial support.
 - (d) financing in the form of multiple contractually linked instruments to investors that create concentrations of credit or other risks (tranches).
- B23 Examples of entities that are regarded as structured entities include, but are not limited to:
- (a) securitisation vehicles.
 - (b) asset-backed financings.
 - (c) some investment funds.
- B24 An entity that is controlled by voting rights is not a structured entity simply because, for example, it receives funding from third parties following a restructuring.

Nature of risks from interests in unconsolidated structured entities (paragraphs 29–31)

- B25 In addition to the information required by paragraphs 29–31, an entity shall disclose additional information that is necessary to meet the disclosure objective in paragraph 24(b).
- B26 Examples of additional information that, depending on the circumstances, might be relevant to an assessment of the risks to which an entity is exposed when it has an interest in an unconsolidated structured entity are:
- (a) the terms of an arrangement that could require the entity to provide financial support to an unconsolidated structured entity (eg liquidity arrangements or credit rating triggers associated with obligations to purchase assets of the structured entity or provide financial support), including:
 - (i) a description of events or circumstances that could expose the reporting entity to a loss.
 - (ii) whether there are any terms that would limit the obligation.
 - (iii) whether there are any other parties that provide financial support and, if so, how the reporting entity's obligation ranks with those of other parties.
 - (b) losses incurred by the entity during the reporting period relating to its interests in unconsolidated structured entities.
 - (c) the types of income the entity received during the reporting period from its interests in unconsolidated structured entities.
 - (d) whether the entity is required to absorb losses of an unconsolidated structured entity before other parties, the maximum limit of such losses for the entity, and (if relevant) the ranking and amounts of potential losses borne by parties whose interests rank lower than the entity's interest in the unconsolidated structured entity.
 - (e) information about any liquidity arrangements, guarantees or other commitments with third parties that may affect the fair value or risk of the entity's interests in unconsolidated structured entities.
 - (f) any difficulties an unconsolidated structured entity has experienced in financing its activities during the reporting period.
 - (g) in relation to the funding of an unconsolidated structured entity, the forms of funding (eg commercial paper or medium-term notes) and their weighted-average life. That information might

include maturity analyses of the assets and funding of an unconsolidated structured entity if the structured entity has longer-term assets funded by shorter-term funding.

Appendix C

Effective date and transition

This appendix is an integral part of the Standard and has the same authority as the other parts of the Standard.

Effective date and transition

C1 An entity shall apply this Standard for annual periods beginning on or after 1 January 2016. Earlier application is permitted for periods beginning on or after 1 January 2014 but before 1 January 2016.

C1A–

C1B [Deleted by the AASB]

C1C AASB 2015-5 *Amendments to Australian Accounting Standards – Investment Entities: Applying the Consolidation Exception*, issued in January 2015, amended paragraph 6 in the previous version of the Standard. An entity shall apply that amendment for annual periods beginning on or after 1 January 2016. Earlier application is permitted. If an entity applies that amendment for an earlier period it shall disclose that fact.

C1D AASB 2017-2 *Amendments to Australian Accounting Standards – Further Annual Improvements 2014–2016 Cycle*, issued in February 2017, added paragraph 5A and amended paragraph B17. An entity shall apply those amendments retrospectively in accordance with AASB 108 *Accounting Policies, Changes in Accounting Estimates and Errors* for annual periods beginning on or after 1 January 2017.

C2 [Deleted by the AASB]

C2A The disclosure requirements of this Standard need not be applied for any period presented that begins before the annual period immediately preceding the first annual period for which AASB 12 is applied.

C2B The disclosure requirements of paragraphs 24–31 and the corresponding guidance in paragraphs B21–B26 of this Standard need not be applied for any period presented that begins before the first annual period for which AASB 12 is applied.

References to AASB 9

C3 If an entity applies this Standard but does not yet apply AASB 9, any reference to AASB 9 shall be read as a reference to AASB 139 *Financial Instruments: Recognition and Measurement*.

Appendix E

Australian implementation guidance for not-for-profit entities

This appendix is an integral part of the Standard and has the same authority as the other parts of the Standard. The appendix applies only to not-for-profit entities. The appendix does not apply to for-profit entities or affect their application of AASB 12.

- IG1 AASB 12 incorporates International Financial Reporting Standard IFRS 12 *Disclosure of Interests in Other Entities*, issued by the International Accounting Standards Board. Consequently, some of the text of this Standard particularly reflects the perspective of for-profit entities. The AASB has prepared this appendix to explain and illustrate the definition of ‘structured entity’ in the Standard for not-for-profit entities in the private and public sectors, to address circumstances where the for-profit perspective does not readily translate to a not-for-profit perspective.
- IG2 AASB 12 includes specific disclosure requirements regarding both consolidated and unconsolidated structured entities. Entities preparing general purpose financial statements that apply AASB 1060 *General Purpose Financial Statements – Simplified Disclosures for For-Profit and Not-for-Profit Tier 2 Entities* are not required to comply with AASB 12.

Structured entities

- IG3 A structured entity is defined in Appendix A of AASB 12 as follows:
- “An entity that has been designed so that voting or similar rights are not the dominant factor in deciding who controls the entity, such as when any voting rights relate to administrative tasks only and the relevant activities are directed by means of contractual arrangements.”
- Relevant activities are defined in AASB 10 as the activities of an entity that significantly affect the entity’s returns. The current ability to direct the relevant activities is necessary in order for one entity to control another.
- IG4 Paragraph B22 of AASB 12 states that structured entities often have some or all of the following features or attributes: restricted activities, a narrow and well-defined objective, insufficient equity to finance its activities without subordinated financial support, and financing tranches in the form of multiple contractually linked instruments. Paragraph B23 gives examples of structured entities: securitisation vehicles, asset-backed financings and some investment funds.
- IG5 The definition of a structured entity depends on voting or similar rights not being the dominant factor in deciding who controls an entity. Voting rights are a common feature in many for-profit entities, having a dominant role in determining who controls an entity. Accordingly, the principle underlying the definition limits the scope of structured entities to entities that are controlled through less conventional means. The features listed in paragraph B22 and the examples in paragraph B23 also suggest that structured entities constitute a limited class of entity.
- IG6 It is common for not-for-profit entities to be established by administrative arrangements or legislation, especially in the public sector. Therefore, if the administrative arrangements or legislation are dominant factors in determining control of such an entity, the entity is not a structured entity. The AASB 12 disclosures regarding structured entities, such as the provision of financial support without a contractual obligation, are not particularly relevant to such entities, given the expectation of ongoing government funding through appropriations to supplement any other revenue sources.
- IG7 Applying the principle underlying the definition of a structured entity means that structured entities have been designed so that less conventional means – in the context of not-for-profit entities – are the dominant factor in determining who controls the entity. This approach limits, for not-for-profit entities, the scope of structured entities to entities that have been designed so that voting or similar rights, including administrative arrangements or statutory provisions, are not the dominant factor in determining control of the entity.
- IG8 To illustrate the definition of a structured entity, an entity for which contractual arrangements are significant to determining control of the entity is a structured entity. This would include entities for which most of the activities are predetermined, with the relevant activities limited in scope but directed through contractual arrangements. Examples of such entities are included in paragraph B23. Another example would be a partnership between a government and a private sector entity, being a partnership established and directed by contractual arrangements. On that basis, the partnership is a structured entity, regardless of the rights (if any) that the government and the entity have in relation to the partnership. If the government guarantees a certain level of revenue for its private sector partner, for example, the AASB 12 disclosures concerning the provision

of financial support would be particularly relevant, whether the partnership is a consolidated or an unconsolidated structured entity for the government. However, the mere fact that a government provides funding to another entity does not make that entity a structured entity.

IG9 Not-for-profit private sector entities will also need to identify any structured entities with which they are associated. For example, a not-for-profit private sector entity may have established or sponsored a community service organisation whose relevant activities are directed by means of contractual arrangements. Those arrangements might require the not-for-profit private sector entity to provide financial support in specified circumstances to the community service organisation, or alternatively the entity might choose to provide financial or other support to the organisation without the contractual obligation to do so (eg due to the economic dependency of the organisation upon the entity). The AASB 12 disclosure requirements would be relevant in both circumstances as the community service organisation is a structured entity. Paragraph 31, for example, would require the not-for-profit private sector entity to disclose any current intentions to provide support to an unconsolidated structured entity.

Appendix F

Australian simplified disclosures for Tier 2 entities

This appendix is an integral part of the Standard.

<u>AusF1</u>	<u>This Standard does not apply to entities preparing general purpose financial statements that apply AASB 1060 <i>General Purpose Financial Statements – Simplified Disclosures for For-Profit and Not-for-Profit Tier 2 Entities</i>.</u>
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Compilation details

Accounting Standard AASB 12 Disclosure of Interests in Other Entities (as amended)

Compilation details are not part of AASB 12.

This compiled Standard applies to annual periods beginning on or after 1 July 2021. It takes into account amendments up to and including 6 March 2020 and was prepared on 21 July 2021 by the staff of the Australian Accounting Standards Board (AASB).

This compilation is not a separate Accounting Standard made by the AASB. Instead, it is a representation of AASB 12 (August 2015) as amended by other Accounting Standards, which are listed in the table below.

Table of Standards

Performance Measures					Final Goals PY 2024	Final Goals PY 2025
WIOA Title I Adults					-	-
Standard	Date made	FRL identifier	Commence-ment date	Effective date (annual periods ... on or after ...)	Application, saving or transitional provisions	
Employment (Fourth Quarter after Exit)					69.5%	71.5%
AASB 12 Median Earnings	7 Aug 2015	F2015L01536	31 Dec 2015	(beginning) 1 Jan 2016	see (a) below	
AASB 2017-2 Credential Attainment Rate	13 Feb 2017	F2017L00194	13 Feb 2017	(beginning) 1 Jan 2017	see (b) below	
AASB 2019-1 Measurable Skill Gains	21 May 2019	F2019L00966	31 Dec 2019	(beginning) 1 Jan 2020	see (c) below	
AASB 2020-1 Effectiveness in Serving Employers	6 Mar 2020	F2020L00288	30 Jun 2021	(beginning) 1 Jul 2021	see (d) below	
WIOA Title I Dislocated Workers					-	-
Employment (Second Quarter after Exit)					80.5%	81.0%
Employment (Fourth Quarter after Exit)					76.5%	77%
Median Earnings					\$9,700.00	\$9,900.00
Credential Attainment Rate					70%	70.5%
Measurable Skill Gains					71.0%	71.0%
Effectiveness in Serving Employers					Baseline	Baseline
WIOA YOUTH - NOT A PART OF THIS RFP						

- (a) [Entities may elect to apply this Standard to annual periods beginning on or after 1 January 2014 but before 1 January 2016.](#)
- (b) [Entities are not permitted to apply this Standard early.](#)
- (c) [Entities may elect to apply this Standard to annual periods beginning before 1 January 2020.](#)
- (d) [Entities may elect to apply this Standard to annual periods beginning before 1 July 2021.](#)

Table of amendments

****UPDATED 11/13/24**

Here is a table of the JFES performance measures:

<u>Paragraph affected</u> <u>Performance Measure</u>	<u>How affected</u> <u>Description</u>	<u>By ... [paragraph/page]</u> <u>Calculation</u>
AusCF1 <u>Entered Employment</u>	added Overall, a minimum of 50% of Participants served by the Contractor shall enter unsubsidized employment. ¹	AASB 2019-1 [page 12] The total number of Participants served as of July 1, 2024 who are employed DIVIDED BY the total number of Participants who begin receiving JFES Case Management services during the contract period who are not employed. ¹
5A Aus31.1 <u>Employment at the Payment Standard</u>	added repealed For a minimum of 50% of employed individuals, such employment shall result in a household gross income from earnings being equal to or exceeding the monthly TFA payment standard plus \$90 for a family of three. ¹	AASB 2017-2 [page 5] Legislation Act 2003, s. 48D The monthly TFA payment standard plus \$90 for a family of three (3) in DSS Rent Region B. DIVIDED BY The total number of Participants receiving JFES Case Management services who are employed during the contract period. ¹
B17 <u>Employment Entries at the Federal Poverty Level (FPL)</u>	amended For a minimum of 25% of the Participants who enter unsubsidized employment, such employment shall result in a household's gross income from earnings being equal to or exceeding the monthly calculation of the annualized FPL for a family of three. ²	AASB 2017-2 [page 6] The total number of Participants with household gross income greater than or equal to the monthly calculation of the annualized FPL for a family of three. DIVIDED BY the total number of Participants receiving JFES Case Management services who are employed during the contract period. ²
C1D <u>Employment Retention</u>	added A minimum of 60% of Participants in unsubsidized employment and shall retain employment in two (2) consecutive quarters; and a minimum of 40% of	AASB 2017-2 [page 6] Not specified.

<u>Paragraph affected</u> Performance Measure	<u>How affected</u> Description	<u>By ... [paragraph/page]</u> Calculation
	Participants in unsubsidized employment and shall retain employment in three (3) consecutive quarters. ²	
<u>IG2</u> Enrollment in TANF Activities	<u>amended</u> A minimum of 50% of all families included in the required denominator of the monthly TANF participation rate calculations, as defined by federal regulations shall be enrolled in countable TANF work activities that meet the minimum federal participation requirements. ²	<u>AASB 1060 [page 59]</u> Not specified.
<u>Appendix F</u>	<u>replaced</u>	<u>AASB 1060 [page 59]</u>

Deleted IFRS 12 text

Deleted IFRS 12 text is not part of AASB 12.

C1A Consolidated Financial Statements, Joint Arrangements and Disclosure of Interests in Other Entities: Transition Guidance (Amendments to IFRS 10, IFRS 11 and IFRS 12), issued in June 2012, added paragraphs C2A–C2B. An entity shall apply those amendments for annual periods beginning on or after 1 January 2013. If an entity applies IFRS 12 for an earlier period, it shall apply those amendments for that earlier period.

C1B Investment Entities (Amendments to IFRS 10, IFRS 12 and IAS 27), issued in October 2012, amended paragraph 2 and Appendix A, and added paragraphs 9A–9B, 19A–19G, 21A and 25A. An entity shall apply those amendments for annual periods beginning on or after 1 January 2014. Early adoption is permitted. If an entity applies those amendments earlier, it shall disclose that fact and apply all amendments included in Investment Entities at the same time.

C2 An entity is encouraged to provide information required by this IFRS earlier than annual periods beginning on or after 1 January 2013. Providing some of the disclosures required by this IFRS does not compel the entity to comply with all the requirements of this IFRS or to apply IFRS 10, IFRS 11, IAS 27 (as amended in 2011) and IAS 28 (as amended in 2011) early.

~~PERIOD FOR PERFORMANCE AND CONTRACT PERIOD~~
Contracts will be written for one year followed by three one year renewable periods. Renewal will be at the option of the NRWIB. Contracts will contain additional clauses related to termination for convenience with the proper notice to provide for contractors not wishing to continue services beyond any one year period. Performance will be measured each year.

PROPOSAL APPLICATION CRITERIA AND INSTRUCTIONS

1. Who May Apply

Proposer(s) may be public or private not-for-profit corporations, local educational agencies, business and/or trade associations, private for-profit corporations, community based organizations, labor organizations and governmental units including municipalities. Minority and women-owned businesses are encouraged to submit proposals.

Entities must have been in business in the United States for at least two (2) years prior to submission of an application. If proposer(s) is a foreign corporation (not a CT Corporation) they must have a certificate from the CT Secretary of State showing that they have filed the necessary documents to do business in this state.

2. Accessing the RFP Document and Attachments

Interested parties may access the RFP from the website www.nrwib.org. Interested parties are responsible for checking the website for additions, modifications, and questions and answers concerning this RFP. The NRWIB will not contact proposers individually or respond to questions on an individual basis. All questions received will be posted on the website along with the answers.

Proposer(s) must respond to all the questions in this application section of the WIOA Title I Career Services RFP.

3. Number of WIOA Title I Career Services Providers

The NRWIB is seeking a single provider for WIOA Title I services for adults, dislocated workers and youth programs as well as for the implementation of any discretionary grants requiring similar services and received during the Agreement period.

~~Joint, partner, consortium proposals or proposals which subcontract elements of the services will be deemed non responsive.~~

4. ~~Due Dates~~ All dates are subject to change by NRWIB

EVENT	DATE/TIME
RFP Issued to the Public	November 4, 2024
Deadline for Submitting Written Questions to NRWIB	December 13, 2024 @ 4:00 p.m.
Proposers' Conference	November 13, 2024 @ 12:00 p.m.
Letter of Intent to Apply	December 20, 2024 @ 4:00 p.m.
Deadline for Proposal Submission	January 17, 2025 @ 4:00 p.m.

~~a. Proposals must be submitted on or before 4:00 p.m., January 17, 2025.~~

~~Proposals may be sent by US Mail, Courier or hand delivered.~~

~~b. Mail courier or hand delivered~~

~~Northwest Regional Workforce Investment Board, Inc
249 Thomaston Ave
Waterbury, CT 06702
ATTN: Jeffrey Lynes~~

Proposals may not be faxed or sent electronically.

~~NRWIB shall not be held responsible for proposer's failure to meet responsiveness, date, time and location deadlines due to late delivery or omissions by the U. S. Postal services or other courier or delivery services.~~

~~All submissions should be marked: Response to One-Stop WIOA Title I Career Services~~

5. ~~The RFP Response Package~~

~~a. The RFP Response package consists of the completion of the Proposal Application, **Attachment 2** of the RFP package, and all required forms.~~

~~b. All response packages must be single spaced, single-sided on 8.5" inch x 11" inch paper. Complete all responses in Arial pitch, 12 point type (note that some tables may require smaller fonts). Maintain 1 inch margins.~~

- ~~e. Number each page of the response sequentially beginning with the Proposer(s) Application for WIOA Title I Career Services Cover Sheet as page one. The page number should be in a footer with the name of the organization submitting the response, and the name of the program proposed. Footers should be printed in an 8 pitch. Tabbed dividers should not be numbered. Page numbers should be consecutive from beginning to end. Proposals are not to be paginated by sections.~~
- ~~d. Please submit one complete application with original signatures and all attachments and 15 complete copies with all attachments for a total of 16 sets.~~
- ~~e. All applications are to be submitted in three ring binders and are not to be stapled or clipped. Each copy should be in its own binder. The proposals are to be arranged and tabbed in the order indicated in paragraphs (g) and (h) below and must be presented in the format described in (f) below. This will make it easy for reviewers to read your proposal and for us to make additional copies if needed. **Proposals that are not in loose leaf binders will be returned unread and will not be considered for funding.** NRWIB will not return proposals or binders or exhibits to proposers.~~

~~The original Proposal must contain the original signature of the designated agent officially authorized to act as the contractual agent for the organization affixed to each document where a signature is required.~~

- ~~f. The original and all 15 copies of the Application should be securely sealed and clearly marked on the outside WIOA Title I Career Services, and submitted by "Name of your Agency." **Proposer(s) must also submit an electronic version of the proposal on a Flash drive in Microsoft Word and the Budget section in Excel.**~~

~~g. In writing your response:~~

- ~~i. Respond to every question asked. Do not omit any questions.~~
- ~~ii. The RFP is available to you electronically in MS Word. If using the soft copy of the RFP insert your response below each question. If using a paper copy restate the question and type your response immediately following the question.~~
- ~~iii. All questions and responses should follow the numbers assigned in the request for proposals. Do not renumber the questions. Use the same number that appears in this request for proposals for the question prior to your answers as the rating sheets are keyed to the question numbers. Raters will not be able to find your responses if you change the numbering system.~~
- ~~iv. Do not respond to questions by cross referencing to another response.~~
- ~~v. If a question asks for a yes or no answer place the yes/no response at the beginning of your answer and provide the narrative information requested on the next line.~~

- ~~vi. Start your responses to each section on a new page.~~
- ~~h. Proposal Order of Documents—Please place the proposal component responses in the following order:~~
 - ~~1. Application for Funds **Attachment 2**~~
 - ~~a. Completed Application~~
 - ~~b. Organizational Charts~~
 - ~~c. Two Credit References required of non-public institutions~~
 - ~~d. Work Activity Schedule~~
 - ~~e. Staff resumes or position qualifications if staff are not yet hired~~
 - ~~2. Budget Forms **Attachment 3**~~
 - ~~3. Required Federal and State Forms **Attachment 4**~~
 - ~~a. Certificate Regarding Lobbying~~
 - ~~b. Certification Regarding Conflict of Interest~~
 - ~~c. Certification regarding Debarment Suspension~~
 - ~~d. Certification regarding Drug Free Workplace~~
 - ~~4. Experience Reference Form **Attachment 5**~~
 - ~~5. Copy of your most recent Audit or Financial Statement~~
- ~~6. Staffing~~

~~There are currently staff providing the services requested under this RFP. The selected proposer will be required to hire all the line staff providing the services. HOWEVER the selected proposer will be able to hire their own managers and supervisors. The selected proposer will be required to interview and consider the managers and supervisors in place at the time of the release of this RFP but it will be up to the proposer to determine whether they wish to retain any or all of the existing management staff.~~

~~7. Inquiries, Questions and Updates to the Proposal~~

~~All updates or modifications to the Proposal Requirements will be posted on the NRWIB website. All questions regarding this RFP should be posted to the NRWIB website. Questions are generally answered within two (2) business days or sooner if possible.~~

~~Questions arising at the Proposers' Conference will be posted on NRWIB website.~~

~~Questions will be accepted through December 13, 2024.~~ The NRWIB will not respond individually to questions or send out updates on an individual basis. It is the proposer's responsibility to visit the website to access this information.

~~8. Proposer References~~

- ~~a. Proposer must submit two (2) references on the forms provided as Attachment 5 to this RFP from organizations, not individuals, familiar with proposer's organization and able to comment on proposer's ability to deliver the services proposed. Attachment 5~~
- ~~b. References must have done business with Proposer within the immediate past five (5) years. Please print and make two (2) copies of the form and sign the form at the bottom. There must be three (3) original signatures. Return the signed forms with your RFP response. Proposals without signed reference forms will be deemed unresponsive. Proposer may ask their references to fax the references to the NRWIB at 203-573-8951.~~
- ~~c. Proposer(s) must submit two (2) credit references. Public/governmental entities are not required to submit credit references.~~

~~9. Cure Process~~

~~NRWIB has established a discretionary cure process to cure minor omissions in submitted proposals within forty eight (48) hours of notification by the NRWIB via email to the proposer's contact named in the application. Failure to provide the requested information within the allotted time shall result in a "fatal flaw." This process is provided by NRWIB as a courtesy, and as such, NRWIB is not responsible for notification of any omissions or errors in any documentation submitted by the applicant agency in response to the RFP.~~

~~All applying agencies are solely responsible for contact availability via e-mail during this cure period and failure to receive NRWIB notification of cure issues is not subject to appeal.~~

~~Minor inconsistencies or revisions may be addressed during the negotiation process, at the sole and complete discretion of NRWIB.~~

~~10. Selection Criteria~~

- ~~a. All proposals submitted will be evaluated against all other proposals using the rating criteria, which is a part of this RFP package, (Attachment 6) and ranked by the One Stop Committee tasked with the review of all proposals.~~
- ~~b. Proposals may not be funded at the funding levels requested.~~
- ~~c. The highest ranking numerical score does not assure a funding recommendation. Other factors which may be considered include, but are not limited to: a risk assessment, past performance, cost, the likelihood of services resulting in self-sufficient employment, relevant experience and qualifications, or financial viability and stability of the agency.~~

- ~~d. The NRWIB reserves the right, at its sole and complete discretion, to invite proposer(s) to make a presentation to the RFP Review Committee as a step in the selection process. NRWIB also reserves the right, at its discretion, to conduct pre-selection site visits to any organization that is being considered for funding under this solicitation.~~
- ~~e. Proposals will be reviewed by staff for responsiveness and substance.~~
- ~~f. Proposer(s) are advised not to contact NRWIB employees, board members or elected officials charged with oversight of these programs during the review process to avoid conflicts, the appearance of conflicts, or undue influence over the process. This could result in the disqualification of the proposal response submitted.~~

~~11. Administrative Requirements~~

- ~~a. Final performance requirements under WIOA have not yet been negotiated with the state. When they are negotiated the contract developed with the selected proposer will be modified to reflect the required performance rates set at 5% above that required by the state.~~

~~Contracts written during the renewal periods as a result of this RFP will be subject to negotiation of expected performance for each year the contract is in effect.~~

- ~~b. In addition to the federal performance measures, performance will also be measured based on compliance, timely data entry, and monitoring findings. Selected providers who do not meet negotiated performance may be subject to cancellation or non-renewal of their agreement at the end of each program year in which performance is not attained.~~
- ~~c. Proposer(s) must be able to demonstrate the necessary administrative capability and fiscal responsibility needed to operate the program proposed and to meet federal financial accountability requirements. Proposer's organization may be subject to a pre-award review. This may include, but not be limited to, a review of proposer(s) record keeping procedures, management systems, accounting and administrative systems, training facilities, and curriculum.~~
- ~~d. Any proposer(s), after a pre-award survey that is determined by NRWIB to not have the fiscal capability to manage the grant funds will be required to post a performance bond, or may be rejected as a provider at the discretion of NRWIB. The cost of the bond cannot be charged to the project proposed. NRWIB reserves the right to review budgets to determine the fiscal capacity of the proposer(s) and may deem a proposal non-responsive if proposer(s) cannot demonstrate fiscal capacity through staffing sufficient to be able to deliver the program proposed and separation of duties sufficient to safeguard the integrity of the funds.~~
- ~~e. All organizations funded whether public or private, commercial or not for profit, receiving at least \$750,000.00 annually through federal grants regardless of the funding source will be required to conduct and submit an annual audit. Funds~~

may not be included in the budget for an annual audit if proposer does not receive at least \$750,000.00 of federal funds annually.

- ~~f. All media advertisements, collateral and printed material used in the promotion of the program, recruitment of participants, and published reports must name NRWIB as the grantor agency and must be approved in advance of publication by the NRWIB Executive Director. The time necessary to obtain the appropriate approvals must be considered when developing materials or other media advertisements.~~
- ~~g. Insurance Requirements—The proposer(s) agrees to submit to NRWIB prior to the provision of services under this proposal Certificates of Insurance including all endorsements required herein, and to keep such insurance and the Certificates of Insurance with NRWIB during the entire term of the Agreement to be negotiated. All insurance policies required by this Agreement shall declare any deductible or self-insured retention (SIR) in an amount in excess of \$25,000 (\$5,000 for automobile liability), which shall specifically be approved by NRWIB. Proposer shall be responsible for reimbursement of any deductible to the insurer. If the proposer fails to maintain insurance acceptable to NRWIB for the full term of the Agreement, NRWIB may terminate any Agreement.~~
- ~~i. If the selected proposer(s) is a governmental entity, they may elect to self-insure for the insurance coverage required for this agreement.~~
- ~~ii. The policy or policies of insurance must be issued by an insurer licensed to do business in the State of Connecticut. If the carrier is a non-admitted carrier in the State of Connecticut, NRWIB retains the right to approve or reject carrier after a review of the company's performance and financial ratings. The policy or policies of insurance maintained by the Contractor shall provide the minimum limits and coverage as applicable to this project as set forth below:~~

<u>Coverage</u>	<u>Minimum Limits</u>
Commercial General Liability to include a Broad Form Property Damage Endorsement and Contractual Liability	\$1,000,000 combined single limit per occurrence \$2,000,000 Aggregate
Automobile Liability including all owned and non-owned and hired vehicles	\$1,000,000 combined single limit per occurrence
Workers' Compensation	Statutory
Employer's Practices Liability	\$1,000,000 per occurrence
Professional Liability	\$1,000,000 per claims made
Intellectual Property	To cover any patent, copyright or trademark infringement claims including the cost of the defense of any action brought against NRWIB, its governing Boards and Contractor
Fidelity/Crime/Honesty Bond	In the amount of the funds awarded to proposer(s)

- ~~iii. Each insurance policy required by this Agreement shall be endorsed to contain the following provisions:~~

- ~~i. This insurance shall not be changed, canceled, limited in scope of coverage or non-renewed until after thirty (30) days written notice has been given to NRWIB.~~

~~II.—If a thirty (30) day notice of cancellation endorsement is not received, the cancellation clause must include language as follows, which edits the pre-printed ACCORD certificate:~~

~~SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, THE ISSUING COMPANY WILL MAIL THIRTY (30) DAYS WRITTEN NOTICE TO THE CERTIFICATE HOLDER NAME TO THE LEFT.~~

~~III.—All rights of subrogation are hereby waived against the State of Connecticut, its appointed officials, officers and employees, NRWIB, its elective and appointed officials, officers and employees, when acting within the scope of their employment or appointment. (Endorsement must be attached to Certificate of Insurance.)~~

~~iv.—With respect to operations of the named insured performed on behalf of NRWIB, are added as additional insured's except for Workers' Compensation/ Employers' Liability and Professional Liability. (Endorsement must be attached to Certificate of Insurance.)~~

~~v.—It is agreed that any insurance maintained by NRWIB will apply in excess of, and not contribute with, insurance provided by this policy. (Endorsement must be attached to Certificate of Insurance for the General Liability policy.)~~

~~vi.—Any losses shall be payable notwithstanding any act or failure or negligence of NRWIB, or any other person.~~

~~vii.—Commercial General Liability policy shall contain a severability of interests' clause.~~

~~viii.—Contractor agrees to maintain Professional Liability Insurance, as appropriate, for a period of two (2) years following completion of this Agreement.~~

~~ix.—NRWIB shall retain the right at any time to review the coverage, form and amount of the insurance required hereby. If, in the opinion of NRWIB, the insurance provisions in this section do not provide adequate protection for NRWIB, NRWIB may require Proposer to obtain insurance sufficient in coverage, form, and amount to provide adequate protection. NRWIB requirements shall be reasonable and shall be designed to assure protection from and against the kind and extent of risks, which exist at the time a change in insurance is required.~~

~~h.—The procuring of such required policy or policies of insurance shall not be construed to limit Proposer's liability hereunder or to fulfill the Indemnification provisions and requirements of the agreement to be entered into as a result of this proposal.~~

- ~~i. Proposer(s) must agree to cooperate with and provide such information as may be requested by NRWIB for purposes of filing reports with the State and the NRWIB Governing Boards.~~
- ~~j. This RFP does not commit or obligate NRWIB to pay for any costs incurred in the preparation of a response or in advance of the execution of a contract.~~
- ~~k. Implementation of this program may not occur prior to the start date of the contract document.~~
- ~~l. Proposer(s) whose main headquarters are located out of the workforce area and who maintain their books and records outside of the workforce area must specify in their proposal how they will make their books and records accessible to the NRWIB for monitoring and audit purposes. It will not be sufficient to state that NRWIB may visit contractor's site, the records must be available to the NRWIB in its workforce area. Failure to do so may result in the proposal being deemed non-responsive.~~
- ~~m. Proposer must agree to be trained in the State of Connecticut participant data entry system. Proposer(s) may not include the costs of any custom or proprietary information technology system in their budgets.~~
- ~~n. NRWIB will not pay for the maintenance of duplicate MIS systems or proprietary assessment systems owned by proposer or a related company such as an affiliate or subsidiary.~~
- ~~o. In the event of a conflict or ambiguity between the rules, terms, and conditions set forth in the RFP and the statutes, laws, State policies and regulations, the statutes, laws, State policies and regulations shall prevail. NRWIB shall be responsible for making all determinations in this regard.~~
- ~~p. Proposer(s) will be required to maintain and provide a case file for each participant. The files will be considered NRWIB property and must be turned over to NRWIB at the end of the contract unless other arrangements are made during contract negotiations.~~
- ~~q. Proposer(s) will assure that all records pertaining to this agreement, including financial, statistical, property, and supporting documentation, shall be retained for a period of six (6) years from the date of: 1) final payment of under this agreement, and 2) when all audits and litigation are complete and resolved.~~
- ~~r. Proposer(s) must implement a system for monitoring participant time and attendance in the program.~~

~~12. Progress Reports~~

~~Proposer(s) will be required to evaluate their progress, and report to the NRWIB on a monthly and annual basis in accordance with a report format to be provided by the NRWIB. Proposer(s) should also be able to report data to include information not yet in~~

the state database for example the number of projected exits or number of projected entries into training.

13. The Agreement Type and Budget

- ~~a. All contracts negotiated as a result of this RFP will be cost reimbursement. This is a contract format wherein all allowable costs detailed in the budget attached to the executed contract are reimbursed upon submission of documentation, which substantiates the expenditures. Allowable means allowable under both the grant funding stream supporting the contract expenditures and the executed contract.~~
- ~~b. Initial contracts will be written for the program year beginning July 1, 2025, and subsequent renewals may be written for three (3) one (1) year periods beginning July 1st following the first year based upon performance. Additionally, if provider is meeting performance, NRWIB may renew the contract for a second four year term. Renewal will be at the option of the NRWIB Governing Boards. Contracts will contain additional clauses related to termination for convenience with the proper notice to provide for contractors not wishing to continue services beyond any one-year period. Performance will be measured each year.~~
- ~~c. Proposers must complete the budget section of the proposal using the forms provided for in this package. RFP responses, which do not include the budget forms or which include non-conforming budget worksheets will be deemed non-responsive. The Budget is part of the RFP response and can be downloaded from the NRWIB website at www.nrwib.org as **Attachment 3**. Paper copies will not be available.~~
- ~~d. All costs, including profit if applicable, salaries and merit increases, are subject to negotiation as a part of the contracting process. NRWIB will compare salaries and other costs proposed with costs and salaries for similar positions and responsibilities its workforce area in arriving at reasonable negotiated costs. The federal government has imposed salary caps based upon the federal executive level II position levels. Salaries reimbursed or partially reimbursed under contracts funded as a result of this RFP may not exceed the federal salary cap.~~
- ~~e. Travel outside of the NRWIB workforce development area must be described and justified in the proposal and included in the budget along with detail regarding the need for the travel, the number of persons who will be traveling, and the length of the stay. NRWIB shall determine the reasonableness of the travel during negotiations. All in and out of workforce area travel will be subject to NRWIB mileage rates, travel rules, and procedures unless the proposer's policies and procedures have been reviewed and approved by NRWIB.~~
- ~~f. No equipment purchases are allowed. Leasing arrangements for property or staff must be competitively procured and approved during negotiation of the contract.~~
- ~~g. Lease agreements may not be from proposer or proposer's organization or from a subsidiary, or related company or corporation unless they are leased to the general public at the same price as offered under this RFP.~~

14. Cost Parameters

- a. ~~It is a policy of NRWIB not to provide advance payments. Proposals seeking advances will be considered non-responsive and will not be reviewed or rated. If a Proposer approved for funding later identifies the need for an advance the NRWIB will not be able to proceed to contract execution. Invoices are paid once a month. Proposer(s) must be able to support the cost of the program until they are reimbursed, which typically takes thirty (30) days from the date a clean invoice is submitted. Payment of invoices submitted without the proper documentation may be delayed. NRWIB does not pay defective or incomplete invoices. NRWIB may require that an electronic transfer system be set up for the payment of invoices.~~
- b. ~~For profit organizations, profit is capped at a rate of ten (10%) percent. At this time profit is an allowable cost. Profit may be allocated to the cost categories. Profit is only available as a budget line item for commercial organizations. Total profit paid may not exceed the percentage of profit negotiated, and determined reasonable during contract negotiations. Profit is limited to ten percent (10%) of the contract budget excluding, (1) any funds budgeted for payments to other providers for services not offered by proposer(s), (2) any payments for support services, stipends, work experience, incentives or other participant payments and (3) tuition.~~
- c. ~~Administrative costs are limited to five percent (5%) based on the executed contract amount.~~
- d. ~~Supplies and/or materials proposed may not be purchased from proposer(s) or proposer(s) organization or from a subsidiary, or related company or corporation unless they are sold to the general public at the same price as offered under this RFP. Budget items, which are proprietary in nature, must be broken down into a cost reimbursement format.~~
- e. ~~NRWIB cannot reimburse providers for interest charges associated with the establishment of credit lines. The Office of Management and Budget Circulars applicable to grants prohibit interest payments as follows: "Costs incurred for interest on borrowed capital, temporary use of endowment funds, or the use of the non-profit organization's own funds however represented are unallowable."~~
- f. ~~Any and all work performed or expenses involved in the preparation and submission of proposals shall be borne by the applicant(s). No payment will be made for any efforts or expenses prior to commencement of work as defined by a fully executed contract.~~

13. Subcontracts

~~This proposal does not allow for subcontractors.~~

14. Grievance and Procedures

~~In the event a proposer(s) wishes to file a grievance in connection with the process, a grievance procedure is available and may be obtained from the NRWIB~~

~~Administrative Offices. Grievances related to this proposal must be filed in writing within the time frames stated in the NRWIB grievance policy.~~

~~15. Conflict of Interest~~

~~All applicants must disclose the name of any officer, director or employee who is a member of the NRWIB governing boards or an employee of NRWIB. All applicants must disclose the name of any NRWIB employee who owns, directly or indirectly, any interest in the applicants' business or any of its branches. Such disclosure must be submitted in a separate letter included with the Application for WIOA Title I Career Service Funds, no later than the proposal deadline.~~

~~16. Interference with the Procurement Process~~

~~Applicants are hereby advised that, the NRWIB will not award funding to an organization, person, or entity which has hired a person, whether directly or indirectly, or consented to or acquiesced in the employment of a person, whose principal responsibility is to lobby a member of the NRWIB, Inc. or the NRWIB Elected Officials on behalf of the organization, person, or entity which seeks funding from the NRWIB.~~

~~Any applicant or lobbyist for an applicant, paid or unpaid, is prohibited from having any private communication concerning any procurement process or any response to a procurement process with any NRWIB staff or rating committee members after the issuance of a funding opportunity and until completion of a contract award. A proposal from any organization will be disqualified if the applicant or a lobbyist for the applicant, paid or unpaid, violates this condition of the procurement process.~~

~~17. Compliance~~

~~The proposer(s) will fully comply with the applicable requirements of the Acts through which funds are received. It will comply with applicable directives issued by the Connecticut Department of Labor, the Connecticut Department of Social Services as it applies to JFES funds, or other appropriate state department(s). The proposer assures that it will comply with other federal statutes applicable to this agreement.~~

~~18. NRWIB Right to Reject or Accept~~

~~NRWIB retains the right to accept, modify, reject entirely, or partially reject any and all proposals if, in its judgment, the work proposed will not accomplish the objectives of this project or does not meet all of the requirements of this Request for Proposal.~~

~~Appendix A: AI-Generated Summary Authorization Form~~

~~Northwest Regional Workforce Investment Board (NRWIB)~~

~~Bidder/Organization Name: [Insert Bidder/Organization Name]~~

~~Proposal Title: [Insert Proposal Title]~~

~~Overview~~

~~The Northwest Regional Workforce Investment Board (NRWIB) is piloting the utilization of artificial intelligence (AI) technology to generate summaries of submitted proposals. This summary is intended to assist the NRWIB evaluation committee in their review and scoring process.~~

~~Bidders are required to review the AI-generated summary of their submission, confirm its accuracy, and provide authorization for NRWIB to pilot the use of the summary during the evaluation process.~~

~~AI-Generated Summary Review~~

~~I, the undersigned, acknowledge that I have reviewed the AI-generated summary of my proposal submission and confirm that:~~

~~1. _____ The summary accurately represents the content of the original proposal:~~

~~☐ Yes~~

~~☐ No (Please specify inaccuracies below)~~

~~If "No," describe any inaccuracies:~~

~~2. _____ I authorize the NRWIB to use the AI-generated summary in the review and scoring process:~~

☐ Yes
☐ No

Authorization and Acknowledgment

By signing below, I confirm that the information provided is accurate and that I understand the AI-generated summary will be used as a pilot to facilitate the evaluation of my proposal.

Name: [Print Full Name]

Title: [Print Title]

Organization: [Print Organization Name]

Signature: _____

Date: [MM/DD/YYYY]